

26STCV07166 26STCV07166

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-09-16

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Case Number: 26STCV07166 Hearing Date: September 16, 2026 Dept: 514

Alvarez v. Neckermann, LLC

26STCV07166

Plaintiffs' Motion to Strike Answer of Defendant Neckermann, LLC

Plaintiff's Motion to Compel Defendant Weinhart to Respond to Form
Interrogatories (Set One)

Plaintiff's Motion to Compel Defendant Weinhart to Respond to Special Interrogatories
(Set One)

Plaintiff's Motion to Compel Defendant Weinhart to Respond to Requests for Production
(Set One)

Plaintiff's Motion for Order Deeming Defendant Weinhart to Have Admitted the
Truth of the Matters Specified in Requests for Admission (Set One)

Tentative Ruling

The motion to strike is granted.

The motions to compel are denied as moot.

The motion for a deemed-admitted order is
denied.

The requests for sanctions are granted in

part and denied in part.

Background

This case arises out of the rental of residential premises on Chapman Street in Los Angeles.

On March 5, 2026, Cesar Alvarez and Evelyn Rico Zarata (collectively “Plaintiffs”) filed the complaint in this action against Neckermann, LLC (“Neckermann”), Marcus M. Weinhart (“Weinhart”), and Does 1 through 10.

One day later, on March 6, 2026, Plaintiff filed a First Amended Complaint (the “FAC”) against the same defendants. In the FAC, Plaintiffs assert causes of action for: (1) negligence; (2) breach of the implied warranty of habitability; (3) violation of Los Angeles Municipal Code sections 151.10, et seq.; (4) violation of Los Angeles Municipal Code sections 1655.07, et seq.; (5) unlawful and unfair business practices or acts in violation of Business and Professions Code sections 17200, et seq.; (6) failure to pay relocation assistance in violation of Los Angeles Municipal Code section 151.09.H; and (7) failure to pay relocation assistance in violation of Los Angeles Municipal Code section 165.06.

On April 3, 2026, Defendant Weinhart, in pro per, filed an answer on behalf of both himself and Defendant Neckermann.

Currently before the Court and set for hearing on September 16 are a total of five motions.

First, on June 2, 2026, Plaintiffs filed a motion to strike Neckermann’s answer. No opposition has been filed. The hearing was initially set for July 9 and was continued twice.

Next, on July 7, 2026, Plaintiff Alvarez filed four discovery motions: (1) Motion to Compel Defendant Weinhart to Respond to Form Interrogatories (Set One); (2) Motion to Compel Defendant Weinhart to Respond to Special Interrogatories (Set One); (3) Motion to Compel Defendant Weinhart to Respond to Requests for Production (Set One); and (4) Motion for Order

Deeming Defendant Weinhart to Have Admitted the Truth of the Matters Specified in Requests for Admission (Set One). The hearing on these motion was initially set for August 13 and was continued.

On July 16, 2026, counsel substituted in for Defendant Weinhart.

On July 31, 2026, Weinhart filed an opposition to the four discovery motions. Plaintiff Alvarez filed replies on August 5.

On August 27, 2026, counsel substituted in for Defendant Neckermann.

A trial date has not been set.

Request for Judicial Notice

In connection with their motion to strike, Plaintiffs ask the Court to take judicial notice of two documents from this case, a search of the online records of the State Bar of California, and a Statement of Information filed with the California Secretary of State. The requests are granted.

Discussion

Motion to Strike Answer

Neckermann filed an answer to the FAC on April 3, 2026. The answer was signed by Marcus Weinhart.

As Mr. Weinhart is not a member of the bar, this was improper. Only an active member of the state bar may appear in court on behalf of a party. A corporate entity, unlike a natural person, "cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.)

The motion to strike is granted.

As Neckermann is now represented by counsel, the Court expects that Neckermann will now file a procedurally proper answer to the FAC. If it does not do so promptly, Neckermann will be at risk of having a default entered against it.

Four Discovery Motions

While these discovery motions were pending, Defendant Weinhart retained counsel and served verified responses to the form interrogatories, special interrogatories, requests for production, and requests for admission.

Accordingly, the motion for a deemed-admitted order is denied, and the three motions to compel responses are denied as moot.

That leaves the issue of sanctions.

With regard to the deemed-admitted order, the imposition of sanctions against “the party ... whose failure to serve a timely response to requests for admission necessitated this motion” is “mandatory.” (Code Civ. Proc., § 2033.280, subd. (c).)

Given the straightforward nature of a motion for a deemed-admitted order, and the economies of scale associated with preparing multiple, parallel discovery motions in a single case, the Court sets sanctions on this motion in the amount of \$760, calculated based on two hours of reasonable attorney time, multiplied by counsel's reasonable billing rate of \$350 per hour, plus a \$60 filing fee. (Hyatt Krog Decl., ¶ 3.)

With regard to the three other discovery motions, the Court must impose sanctions unless the Court “finds that finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c) & § 2031.300, subd. (c).) Here, Defendant Weinhart simply failed to respond to properly served discovery. This was not substantially justified, and the imposition of sanctions against him is not unjust. His (former) status as a self-represented

party did not excuse him from his obligation to comply with the Civil Discovery Act.

Given the straightforward nature of these motions, and the economies of scale associated with preparing multiple, parallel discovery motions in a single case, the Court sets sanctions on these three motions in the combined amount of \$880, calculated based on two hours of reasonable attorney time, multiplied by counsel's reasonable billing rate of \$350 per hour, plus a \$180 in filing fees. (Hyatt Krog Decls., ¶ 3.)

Plaintiff has not made a sufficient showing the imposition of a sanction against Defendant Weinhart under Code of Civil Procedure section 2023.050.

Conclusion

The Court GRANTS the motion of Plaintiffs Cesar Alvarez and Evelyn Rico Zarata to strike the Answer filed on April 3, 2026, by Defendant Neckermann, LLC.

The Court STRIKES the Answer filed on April 3, 2026 by Defendant Neckermann, LLC (only). The Answer remains operative and unstricken on behalf of Defendant Weinhart.

The Court DENIES the motion of Plaintiff Cesar Alvarez for an order deeming Defendant Weinhart to have admitted the truth of the matters specified in Requests for Admission (Set One).

The Court DENIES AS MOOT the motion of Plaintiff Cesar Alvarez for an order compelling Defendant Weinhart to respond to Form Interrogatories (Set One).

The Court DENIES AS MOOT the motion of Plaintiff Cesar Alvarez for an order compelling Defendant Weinhart to respond to Special Interrogatories (Set One).

The Court DENIES AS MOOT the motion of Plaintiff Cesar Alvarez for an order compelling Defendant Weinhart to respond to Requests for Production (Set One).

The Court GRANTS IN PART and DENIES IN PART

Plaintiff's requests for sanctions.

The Court ORDERS Defendant Marcus Weinhart to pay monetary sanctions under the Civil Discovery Act in the total amount of \$1,640 to Plaintiff Cesar Alvarez (through counsel) by no later than October 16, 2026.

The Court orders counsel for Plaintiffs to give notice.